Imran vs State & Anr on 19 October, 2022

Author: Swarana Kanta Sharma

Bench: Swarana Kanta Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.M.C. 949/2020
IMRAN
Through: Mr. Shadman Ahm
Advocate

versus

STATE & ANR. .
Through: Mr. Manoj Pant, APP fo
SI Harender Kumar, P.S

CORAM:
HON'BLE MS. JUSTICE SWARANA KANTA SHARMA
ORDER

% 19.10.2022

1. The instant petition under Section 482 of the Code of Criminal Procedure, 1973 has been filed by the petitioner praying for quashing of charge-sheet filed under Sections 354/354B/452/506 of the Indian Penal Code.

2. Notice. Mr. Manoj Pant, learned APP accepts notice on behalf of the State.

3. Petitioners are present before this Court and have been identified by their counsel Mr. Shadman Ahmed Singhal and Investigating Officer (IO) SI Harender Kumar from Police Station Lahori Gate, Delhi.

4. The allegations in the FIR are that on 01.03.2017, at around 5:00 am, respondent no. 2 along with her kids was sleeping in her house. The petitioner went to the house of the respondent no. 2 and started knocking the door. It is alleged that the petitioner had pushed the door open and had entered inside the house, caught hold of the hand of the respondent no. 2, pulled her towards him and started kissing her cheeks. The respondent no. 2 made specific allegations of molestation qua the petitioner. The respondent no. 2 managed to escape from the petitioner. It was further alleged that the petitioner had attempted to commit further acts of the molestation but the respondent no. 2 had locked herself in her house behind the door, pursuant to which an FIR bearing no. 25/2017, under Sections 354/354B/452/506 IPC was registered with Police Station Lahori Gate. Subsequently, the petitioner was granted anticipatory bail vide order dated 09.03.2017 by the learned ASJ, Central Tis Hazari Court. After the investigation, the charge-sheet was filed by the

police before the learned Court of Metropolitan Magistrate (Mahila Court)-02, Central District, Tis Hazari, Delhi.

5. On a query made by this Court, respondent no. 2 who has been identified by the IO, has categorically stated that she has entered into compromise out of her own free will and without any pressure, coercion or threat. It is also stated by respondent no. 2 that the entire dispute has been amicably settled between the parties vide Memorandum of Understanding (MoU) dated 06.01.2020 entered between them.

6. Today, the complainant who is present in Court states that she has no objection if the charge-sheet is quashed.

7. The amicable resolution of cases like the present one is an abiding objective. The dictum of Gian Singh (supra) has been affirmed by the Apex Court in Narinder Singh & Ors. Vs. State of Punjab & Anr. 2014 6 SCC 466 while observing:

> "29. In view of the aforesaid discussion, we sum up and lay down the following principles by which the High Court would be guided in giving adequate treatment to the settlement between the parties and exercising its power under Section 482 of the Code while accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the criminal proceedings:
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> 29.1. Power conferred under Section 482 of the Code is to be distinguished from the power which lies in the Court to compound the offences under Section 320 of the Code. No doubt, under Section 482 of the Code, the High Court has inherent power to quash the criminal proceedings even in those cases which are not compoundable, where the parties have settled the matter between themselves. However, this power is to be exercised sparingly and with caution.
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> 29.2. When the parties have reached the settlement and on that basis petition for quashing the criminal proceedings is filed, the guiding factor in such cases would be to secure: (i) ends of justice, or (ii) to prevent abuse of the process of any court. While exercising the power the High Court is to form an opinion on either of the aforesaid two objectives.
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> 29.3. Such a power is not to be exercised in those prosecutions which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Similarly, for the offences alleged to have been committed under special statute like the Prevention of Corruption Act or the offences committed by public servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender.

29.4. On the other hand, those criminal cases having overwhelmingly and predominantly civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationship or family disputes should be quashed when the parties have resolved their entire disputes among themselves.

29.5. While exercising its powers, the High Court is to examine as to whether the possibility of conviction is remote and bleak and continuation of criminal cases would put the accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal cases."

8. Similarly, in Parbatbhai Aahir & Ors. v. State of Gujarat & Anr. reported as (2017) 9 SCC 641, the Hon ble Supreme Court has observed as under :-

"16. The broad principles which emerge from the Signature Not Verified Digitally Signed Signing Date: 27.07.2022 11:31:24 precedents on the subject, may be summarised in the following propositions:

16.1. Section 482 preserves the inherent powers of the High Court to prevent an abuse of the process of any court or to secure the ends of justice. The provision does not confer new powers. It only recognises and preserves powers which inhere in the High Court.

16.2. The invocation of the jurisdiction of the High Court to quash a first information report or a criminal proceeding on the ground that a settlement has been arrived at between the offender and the victim is not the same as the invocation of jurisdiction for the purpose of compounding an offence. While compounding an offence, the power of the court is governed by the provisions of Section 320 of the Code of Criminal Procedure, 1973. The power to quash under Section 482 is attracted even if the offence is non-compoundable.

16.3. In forming an opinion whether a criminal proceeding or complaint should be quashed in exercise of its jurisdiction under Section 482, the High Court must evaluate whether the ends of justice would justify the exercise of the inherent power.

16.4. While the inherent power of the High Court has a wide ambit and plenitude it has to be exercised (i) to secure the ends of justice, or (ii) to prevent an abuse of the process of any court. 16.5. The decision as to whether a complaint or first information report should be quashed on the ground that the offender and victim have settled the dispute, revolves ultimately on the facts and circumstances of each case and no exhaustive elaboration of principles can be formulated.

16.6. In the exercise of the power under Section 482 and while dealing with a plea that the dispute has been settled, the High Court must have due regard to the nature and gravity of the offence. Heinous and serious offences Signature Not Verified

Digitally Signed Signing Date:27.07.2022 11:31:24 involving mental depravity or offences such as murder, rape and dacoity cannot appropriately be quashed though the victim or the family of the victim have settled the dispute. Such offences are, truly speaking, not private in nature but have a serious impact upon society. The decision to continue with the trial in such cases is founded on the overriding element of public interest in punishing persons for serious offences.

16.7. As distinguished from serious offences, there may be criminal cases which have an overwhelming or predominant element of a civil dispute. They stand on a distinct footing insofar as the exercise of the inherent power to quash is concerned. 16.8. Criminal cases involving offences which arise from commercial, financial, mercantile, partnership or similar transactions with an essentially civil flavour may in appropriate situations fall for quashing where parties have settled the dispute.

16.9. In such a case, the High Court may quash the criminal proceeding if in view of the compromise between the disputants, the possibility of a conviction is remote and the continuation of a criminal proceeding would cause oppression and prejudice; and 16.10. There is yet an exception to the principle set out in propositions 16.8. and 16.9. above. Economic offences involving the financial and economic well-being of the State have implications which lie beyond the domain of a mere dispute between private disputants. The High Court would be justified in declining to quash where the offender is involved in an activity akin to a financial or economic fraud or misdemeanour. The consequences of the act complained of upon the financial or economic system will weigh in the balance."

9. In light of the aforesaid, this court is of the view that notwithstanding the fact that offences under Sections 354/354B IPC are non-compoundable offences, there should be no impediment in quashing proceedings, if this Court is otherwise satisfied that the facts and circumstances of case so warrant.

10. In view of the aforesaid and the fact that the parties have amicably resolved their differences of their own free will, and without any coercion, no useful purpose will be served by continuing the proceedings, rather the same would create further acrimony between them. It would thus be in interest of justice to quash the abovementioned charge-sheet and the proceedings pursuant thereto. There is no legal impediment in quashing the FIR in question.

11. Accordingly, charge-sheet filed under Sections 354/354B/452/506 registered at Police Station Lahori Gate, Delhi and all consequential proceedings emanating therefrom are quashed.

12. The petition stands disposed of.

SWARANA KANTA SHARMA, J OCTOBER 19, 2022/zp